

FAMILY LAW ACT 1975

**IN THE FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA
(DIVISION 2) AT NEWCASTLE**

File No. NCC3896/2023

**STEPHEN CHRISTOPHER COOKE
(Applicant)**

AND

**HEATHER ANNE COOKE
(Respondent)**

COSTS NOTICE FOR STEPHEN COOKE

8 July 2024

Pursuant to 6.35 Central Practice Direction

- a. the total costs and disbursements incurred by Stephen Cooke in the proceeding to date
 - i. with former Solicitors (Clarity Lawyers) billed and paid \$127,000 as advised by Stephen
 - ii. with Ramsdens \$7,407 billed and paid
- b. an estimate of the anticipated costs expected to be incurred in each remaining stage of the proceeding;
 - i. up to and including mediation 27 June \$27,000
 - ii. directions hearing 9 July (presuming on line) \$1,500
 - iii. costs of preparing documents in response to Application in a Case and court appearance one day 23 July (excluding barristers fees) \$15,000
 - iv. preparing for and attending Readiness and Compliance Hearing (presuming on line) \$1,500
 - v. preparation for final hearing in respect of parenting, property and spousal maintenance \$33,000
 - vi. solicitors attendance at hearing to brief Counsel \$5,500 for each day. If 3 days, \$16,500
 - vii. barristers preparation for and attendance at 3 day court hearing say \$8,000 each day and allowing 3 days in preparation \$48,000
- c. an estimate of the likely duration of the final hearing and the total anticipated costs and disbursements expected to be incurred for the remainder of the proceeding



- i. the above estimates - not including i. above for up to and including the mediation, based on a three day hearing for parenting, property and spousal maintenance and total \$115,000
- ii. fees payable to the court - there is a setting down for hearing fee of \$745 for Division 2 and \$745 for the second and subsequent hearing days
- iii. other disbursements might include
 - a. Fees for a Family Report
 - b. If an independent childrens lawyer is appointed to represent the children, they are paid by the Legal Aid Commission which seeks a contribution from parents for their fees.



SIGNED:

Matthew Shepherd

